

**UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK**

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AURELIO VALENCIA

C.V. No. 13-CV-6128(ARR)(CLP)

Plaintiff

AMENDED COMPLAINT

-against-

P.O. CHRISTOP ALAZRAKI, Shield #: 11753;
P.O. JOHN-PATRICK HARRIGAN, Shield #: 18227;
P.O. JOHN DOE (S) and CITY OF NEW YORK

(Jury Trial Demanded
of all issues)

Defendants
-----X

The Plaintiff AURELIO VALENCIA, by his attorney GARNETT H. SULLIVAN, ESQ.,
complaining of the defendant's alleges as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action in which the plaintiff seeking relief for the defendant's violation and deprivation, under color of State law of plaintiff's rights secured by the Fourth and Fourteenth amendments of the New York and United States constitutions and under common law, and is being brought pursuant to 42 U.S.C. sec. 1983.

2. Plaintiff seeks damages, both compensatory and punitive, affirmative and equitable relief, an award of costs, interest and attorney's fees, and such other and further relief as this Court deems just and equitable.

JURISDICTION

3. Jurisdiction is based upon and conferred to this Court by 42 U.S.C. 1983 and 28 U.S.C. secs. 1331 and 1343(3) and (4). Plaintiff further invokes this Court's pendent jurisdiction, pursuant to 28 U.S.C. 1367 (a) with respect to any and all State law claims and as against all parties that are so related to the claims in this action within the original jurisdiction of this Court that they form part of the same case or controversy.

PARTIES

4. That plaintiff AURELIO VALENCIA at all times hereinafter mentioned was and still is a citizen of the United States and a resident of the City and State of New York and County of Queens.

5. That the defendant CITY OF NEW YORK is a municipal organization organized and existing by virtue of the laws of the State of New York.
6. That upon information and belief the defendants P.O. ALAZRAKI, P.O. HARRIGAN and P.O. JOHN DOES at all times hereinafter mentioned were police officers employed by the defendant CITY OF NEW YORK and were acting with the scope of said employment as police officers and were further acting under the direction, supervision and control of defendant CITY OF NEW YORK.
7. The defendants P.O. ALAZRAKI, P.O. HARRIGAN whose first name is not known and P.O. JOHN DOES, whose true names and identify is unknown to plaintiff at this time, are being sued individually and in their official capacity as police officers acting on behalf of the defendant CITY OF NEW YORK.

ADMINISTRATIVE CONDITIONS

8. That within ninety (90) days after the claims arose the plaintiff caused a sworn notice of claim to be duly served upon defendant CITY OF NEW YORK.
9. That the plaintiff was examined by defendant CITY OF NEW YORK pursuant to New York General Municipal Law sec. 50-H.
10. More than thirty (30) days have elapsed since service of the notice of claim and 50-H hearing but Defendant CITY OF NEW YORK or the comptroller have neglected and/or refused to adjust or pay said claims.
11. This action is being commenced within one year and ninety days after the causes of actions set forth herein occurred and within the statutes of limitations applicable to federal civil rights actions brought pursuant to 42 U.S.C. sec. 1983.

FACTUAL ALLEGATIONS

12. That on or about December 9, 2012 at approximately 4:40 A.M. plaintiff was a passenger in a motor vehicle which was stopped at the corner of Hooper Street and Broadway in the county of Kings.
13. That the plaintiff observed police officers respond to the location in response to a dispute which was in progress.

14. Plaintiff was directed by one of the responding police officers to move the vehicle in which plaintiff was seated. That as plaintiff was about to move the vehicle in accordance with the directive of the police officer, P.O. HARRIGAN inquired as to why plaintiff was moving the vehicle. Plaintiff informed said defendant that he had been told to move the vehicle by an officer.

15. The defendant P.O. HARRIGAN then forcefully removed plaintiff from the vehicle causing him to fall to the ground. Defendant HARRIGAN and P.O. JOHN DOES who were present then forcibly struck plaintiff multiple times causing plaintiff to suffer severe pain and lasting injuries which required medical treatment.

16. The defendant ALAZRAKI falsely accused and charged plaintiff with violation of Penal Law sec. 240.20 (disorderly conduct) and 205.30 (resisting arrest). That at the time the defendant made said charges the defendant knew full well that said charges were completely false and fabricated.

17. That as a result of said false charges the plaintiff was caused to be brought before a Judge of the Criminal Court of the City of New York, County of Kings. That said charges were adjourned in contemplation of dismissal pursuant to New York Criminal Proc. Law. Sec. 170.55

18. That the charges were wrongfully and falsely brought against plaintiff by the defendants despite the absence of any facts supporting such charges and the absence of probable cause to believe plaintiff had committed any of the charged penal law violation.

FIRST CAUSE OF ACTION

19. The plaintiff incorporates by reference each preceding paragraph of this complaint as though fully set forth at length herein.

20. That the aforesaid arrest and imprisonment of the plaintiff by defendants in their capacity as police officers employed by defendant CITY OF NEW YORK acting under the color of State Law, without any authority of the law and without any reasonable cause or belief that the defendant was in fact guilty of the crimes for which he was charged.

21. That said defendants, their agents, servants and employees falsely arrested and illegally imprisoned the plaintiff and intentionally subjected plaintiff to confinement which plaintiff was conscious of and said confinement was not otherwise privileged or consented to by plaintiff.

22. That by reason of the aforesaid false arrest and imprisonment cause willfully and maliciously by the defendants, their agents, servants or employees, the plaintiff was wrongfully deprived by the defendants, their agents, servants or employees, the plaintiff was wrongfully deprived of his rights privileges and benefits as provided to him under the constitutions of the United State of America and the State of New York, was subjected to pain, suffering, great indignities, ridicule, scorn, loss of freedom, humiliation, mental distress, was prevented from attending his usual activities was injured in his reputation in the community was further cause to incur monetary expenses.

23. That the defendants committed the foregoing acts willfully and with malicious disregard for plaintiff's rights and is therefore liable to plaintiff for compensatory as well as punitive damages.

SECOND CAUSE OF ACTION

24. The plaintiff incorporates by reference each preceding paragraphs of this complaint as though fully set forth at length herein.

25. The defendants acting under color of State law, subjected plaintiff to the foregoing acts without due process of law in violation of 42 U.S.C. sec. 1983 thereby depriving plaintiff of his rights, privileges and immunities secured by the First, Fourth, Fifth, Ninth and Fourteenth Amendments to the United State Constitution, including, without limitations, deprivation of the following constitutional rights:

- (a) Plaintiff was deprived of Forth Amendment constitutional right to be free from unreasonable searches and seizures of his person;
- (b) Plaintiff was deprived of his Fourteenth Amendment right to liberty without due process of law;
- (c) Plaintiff was deprived of his Fourteenth Amendment right to equal protection of the laws.

THIRD CAUSE OF ACTION

26. The plaintiff incorporates by reference each preceding paragraphs of this complaint as though fully set forth at length herein.

27. Defendants subjected plaintiff to the foregoing acts without due process of law, thereby depriving plaintiff of rights, privileges and immunities secured by Article 1 sec. 1,6,8,9,11 and 12 of the New York State Constitution, including without limitation the following deprivations of his rights, privileges and immunities;

(a) Plaintiff was deprived of his right to be free from unreasonable seizure of his person, in violation of sec. 12 of the constitution of New York;

(b) Plaintiff was deprived of his rights to liberty, without due process of law, in violation of sec. 6 of the constitution of the State of New York;

(c) Plaintiff was deprived of his right to equal protection of the laws, in violation of sec. 11 of the constitution the State of New York.

FOURTH CAUSE OF ACTION

28. That Plaintiff was subjected to excessive force and physical brutality by the defendants prior to his arrest.

29. That the plaintiff had been seized by the police within the meaning of the Fourth Amendment when said unreasonable force was applied by the defendants to plaintiff.

30. That the use of force was intentional and unreasonable and was in violation of the Fourth and Eighth amendments of the United States Court.

31. The injury sustained by plaintiff as a result of said conduct was serious and lasting, and not de minimis.

FIFTH CAUSE OF ACTION

32. The plaintiff incorporates by reference each preceding paragraphs of this complaint as though fully set forth at length herein.

33. That the arrest, detention and imprisonment of plaintiff was wrongful and malicious, and effected without good faith and without reasonable or probable cause or other legal justification or privilege.

34. That the acts and conduct of the defendants constitute false arrest and false imprisonment under the law of the State of New York.

35. That plaintiff was wholly innocent of the aforesaid charges and did not in any way contribute to the conduct of the defendants, their agents, servants and employees.

36. That the defendants intended to confine the plaintiff and the plaintiff was conscious of such confinement and did not consent to his confinement.

SIXTH CAUSE OF ACTION

37. The plaintiff incorporates by reference each preceding paragraphs of this complaint as though fully set forth at length herein.

38. That the defendant police officers acting individually and in concert with each other, committed assault and battery upon plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury, emotional distress, and damage to the plaintiff and violated his statutory and common law rights as guaranteed to him by the laws and constitution of the State of New York.

39. That this Court has supplemental jurisdiction to hear and adjudicate this claim.

40. Defendants committed all the foregoing acts intentionally, willfully and with malicious disregard for plaintiff's rights as a citizen and human and are therefore liable for punitive damages.

SEVENTH CAUSE OF ACTION

41. The plaintiff incorporates by reference each preceding paragraphs of this complaint as though fully set forth at length herein.

42. Defendants, by their aforementioned acts, did intentionally, willfully, and knowingly cause plaintiff to suffer mental, emotional and physical distress, pain and suffering, damage to name and reputation, monetary and property damages.

43. The acts and conduct of defendants constitute intentional infliction of emotional distress under the laws of the State of New York and this Court has supplemental jurisdiction to hear and adjudicate such claims.

44. Defendants committed the foregoing acts intentionally, willfully and with malicious disregard for plaintiff's rights and are therefore liable for punitive damages.

EIGHTH CAUSE OF ACTION

45. The plaintiff incorporates by reference each preceding paragraphs of this complaint as though fully set forth at length herein.

46. Defendants, by their aforementioned acts, did negligently cause plaintiff to suffer mental emotional and physical distress, pain and suffering, damage to name and reputation, monetary and property damages.

47. The acts and conduct of defendants constitute negligent infliction of emotional distress under the laws of the state of New York and this Court has supplemental jurisdiction to hear and adjudicate such claims.

NINTH CAUSE OF ACTION

48. The plaintiff incorporates by reference each preceding paragraphs of this complaint as though fully set forth at length herein.

49. Defendants, by their aforementioned acts, subjected plaintiff to a course of conduct which served no legitimate purpose and was meant solely to alarm him.

50. The acts and conduct of defendants constitute harassment under the laws of the State of New York and this Court has supplemental jurisdiction to hear and adjudicate such claims.

51. Defendants committed the foregoing acts intentionally, willfully and with malicious disregard for plaintiff's rights and are therefore liable for punitive damages.

TENTH CAUSE OF ACTION

52. The plaintiff incorporates by reference each preceding paragraphs of this complaint as though fully set forth at length herein.

53. By the actions described above, defendants acting individually and in concert with each other, violated plaintiff's right of privacy and trespassed on his person, subjected him to embarrassment and humiliation, intruded into and invaded his seclusion of person, solitude and private affairs. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the

plaintiff and violated his statutory and common law rights as guaranteed him by the laws and constitution of the State of New York.

54. As a result of the foregoing, plaintiff was deprived of liberty, sustained great emotional injuries, was subjected to great humiliation, and was otherwise damaged and injured.

ELEVENTH CAUSE OF ACTION

55. The plaintiff incorporates by reference each preceding paragraphs of this complaint as though fully set forth at length herein.

56. That at all times material to this complaint, the defendant CITY OF NEW YORK; acting through its police department had in effect de facto policies, practices, customs, and usages that were a direct and proximate cause of the unconstitutional conduct of the defendant police officers.

57. That it is common practice and common knowledge that police officers of the City of New York routinely arrest individuals and maliciously charge them with the criminal violations of which plaintiff was charged, in the absence of probable cause to believe the persons committed any such violation of laws.

58. That defendant CITY OF NEW YORK is well aware of the foregoing facts and has received innumerable complaints of false arrest for such charges, but the CITY OF NEW YORK has condoned such conduct, and has failed to take sufficiently reasonable actions to investigate and to institute policies to prevent or deter the police from charging innocent citizens of disorderly conduct, obstructing governmental administration and resisting arrest.

59. Defendants, by their aforementioned acts, negligently failed to use due care in the performance of their duties in that they, among other negligent acts:

- (a) Failed to perform their duties as a reasonably prudent and careful police officer would have done under similar circumstances, including
(but not limited to) conducting an improper and unlawful detention, seizure, and arrest; physically assaulting a person; and other acts which a police officer of ordinary prudence would have done;
- (b) Hired and retained incompetent and unfit police officers whom they knew, or should have known, possessed dangerous propensities and a lack of proper temperament

and whom they knew, or should have known, harbored hostility toward persons who questioned or criticized police conduct, or asserted their legal rights;

(c) Failed to exercise care in instructing police officers, officials, supervisors, and civilian employees as to their deportment, behavior, and conduct, including (but not limited to) failing to give proper instructions as to when citizens may be forcibly detained and taken into custody, as to the preparation and submission of accurate criminal charges, as to consequences of inflicting summary punishment and bringing false criminal charges; and as to the obligation of police officers to intervene to protect citizens threatened with violence or deprived of constitutional rights by other New York City police officers;

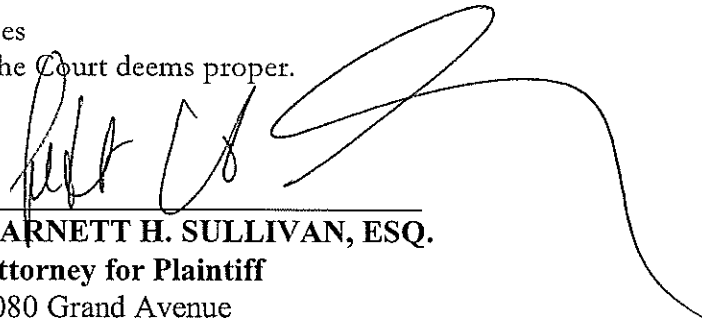
(d) Failed to establish meaningful procedures for disciplining officers and other personnel who have engaged in such acts of misconduct

60. All these acts were performed without any negligence on the part of plaintiff and were the proximate cause of injuries to him.

WHEREFORE, plaintiff demands the following relief jointly and severally against all of the defendants:

- A. Compensatory damages
- B. Punitive damages
- C. Costs, interests, and attorney's fees
- D. Such other and further relief as the Court deems proper.

Dated: South Hempstead, New York
September 4, 2013



GARNETT H. SULLIVAN, ESQ.
Attorney for Plaintiff
1080 Grand Avenue
South Hempstead, NY 11550
(516) 285-1575

AO 440 (Rev. 06/12) Summons in a Civil Action

UNITED STATES DISTRICT COURT

for the

Eastern District of New York

AURELIO VALENCIA

Plaintiff(s)

v.

P.O. CHRISTOP ALAZRAKI, Shield #: 11753;
P.O. JOHN-PATRICK HARRIGAN, Shield #: 18227;
P.O. JOHN DOE(s) AND CITY OF NEW YORK

Defendant(s)

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SUMMONS IN A CIVIL ACTION

To: *(Defendant's name and address)* P.O. JOHN -PATRICK HARRIGAN, Shield #: 18227
1 Police Plaza
New York City, NY 10038

A lawsuit has been filed against you.

Within 21 days after service of this summons on you (not counting the day you received it) — or 60 days if you are the United States or a United States agency, or an officer or employee of the United States described in Fed. R. Civ. P. 12 (a)(2) or (3) — you must serve on the plaintiff an answer to the attached complaint or a motion under Rule 12 of the Federal Rules of Civil Procedure. The answer or motion must be served on the plaintiff or plaintiff's attorney, whose name and address are: GARNETT H. SULLIVAN, ESQ.
1080Grand Avenue
Suite 200
South Hempstead, NY 11550

If you fail to respond, judgment by default will be entered against you for the relief demanded in the complaint. You also must file your answer or motion with the court.

CLERK OF COURT

Date: _____

Signature of Clerk or Deputy Clerk

Civil Action No. 13-CV-6128 (ARR)(CLP)

PROOF OF SERVICE*(This section should not be filed with the court unless required by Fed. R. Civ. P. 4 (l))*

This summons for *(name of individual and title, if any)* _____
 was received by me on *(date)* _____ .

☐ I personally served the summons on the individual at *(place)* _____
 _____ on *(date)* _____ ; or

☐ I left the summons at the individual's residence or usual place of abode with *(name)* _____
 _____ , a person of suitable age and discretion who resides there,
 on *(date)* _____ , and mailed a copy to the individual's last known address; or

☐ I served the summons on *(name of individual)* _____ , who is
 designated by law to accept service of process on behalf of *(name of organization)* _____
 _____ on *(date)* _____ ; or

☐ I returned the summons unexecuted because _____ ; or

☐ Other *(specify)*: _____

My fees are \$ _____ for travel and \$ _____ for services, for a total of \$ 0.00 .

I declare under penalty of perjury that this information is true.

Date: _____

Server's signature

Printed name and title

Server's address

Additional information regarding attempted service, etc: